

Calendar line 4

Case Name: *JPMorgan Chase Bank, N.a v Holly Reyes*

Case No. 25CV464505

This action was filed by Plaintiff on April 25, 2025. Defendant failed to file an Answer and Plaintiff subsequently submitted a Request for Default and Default Judgment on or around August 12, 2025. A Default Judgment was entered against Defendant on January 30, 2026. Thereafter, Plaintiff received notice that Defendant filed for bankruptcy on January 9, 2026, imposing an automatic stay of this case.

Plaintiff now requests pursuant to California Code of Civil Procedure 473(d) that the Default Judgment be vacated and the instant case be dismissed without prejudice. Good cause shown, the motion is GRANTED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

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Calendar Line 6

Case Name: *Brendan Patrick McCloskey v. City Of San Josse, et al.*

Case No. 25CV474909

DEFENDANT’S MOTION TO DISMISS**Background**

Plaintiff filed this action on September 11, 2025. Plaintiff subsequently passed away later that month from an unrelated incident. Plaintiff's counsel has since withdrawn from the action. No personal representative or successor in interest has appeared, and no motion has been filed seeking to continue the action on Plaintiff's behalf.

Defendant City of San Jose represents that it provided notice to Plaintiff's mother concerning the status of the case. Defendant received no response.

Analysis

A pending action does not necessarily abate upon the death of a party. Code of Civil Procedure section 377.21 provides that "[a] pending action or proceeding does not abate by the death of a party if the cause of action survives." Section 377.20, subdivision (a), similarly provides that, except as otherwise provided by statute, a cause of action is not lost by reason of a person's death, but survives subject to the applicable limitations period.

Where a person who commenced an action dies, Code of Civil Procedure section 377.31 provides that, on motion, the Court shall allow a pending action that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. Section 377.32 sets forth the requirements for a person seeking to act as the decedent's successor in interest, including the filing of the required declaration and a certified copy of the decedent's death certificate.

Thus, Plaintiff's death, standing alone, does not require dismissal. At the same time, the record reflects that Plaintiff has been deceased since September 2025, Plaintiff's counsel has withdrawn, and no person authorized to prosecute the action has come forward during the ensuing months.

The Court finds it appropriate to defer ruling on Defendant's motion to allow reasonable notice to persons who may have authority to continue the action and an opportunity for such person to seek continuation of the action pursuant to section 377.31.

California Rules of Court, rule 3.1342, which governs motions to dismiss for delay in prosecution, expressly permits the Court, where the circumstances warrant, to "continue or defer its ruling" pending performance of conditions necessary to effectuate substantial justice. The rule also directs the Court to consider all matters relevant to a proper determination, including the court's file, the nature of the case, the extent of any delay, and whether the interests of justice are best served by dismissal or continuation of the case.